



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

[HB 2158](#): predatory animals; definition

DIAZ FLOOR AMENDMENT

1. Removes *wolves* from the proposed animals that would expand the definition of *predatory animals*.

DIAZ FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2158
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 17-101, Arizona Revised Statutes, is amended to
3 read:

4 17-101. Definitions

5 A. In this title, unless the context otherwise requires:

6 1. "Angling" means taking fish by one line and not more than two
7 hooks, by one line and one artificial lure, which may have attached more
8 than one hook, or by one line and not more than two artificial flies or
9 lures.

10 2. "Bag limit" means the maximum limit, in number or amount, of
11 wildlife that any one person may lawfully take during a specified period
12 of time.

13 3. "Closed season" means the time during which wildlife may not be
14 lawfully taken.

15 4. "Commission" means the Arizona game and fish commission.

16 5. "Department" means the Arizona game and fish department.

17 6. "Device" means any net, trap, snare, salt lick, scaffold,
18 deadfall, pit, explosive, poison or stupefying substance, crossbow,
19 firearm, bow and arrow, or other implement used for taking wildlife.
20 Device does not include a raptor or any equipment used in the sport of
21 falconry.

22 7. "Domicile" means a person's true, fixed and permanent home and
23 principal residence. Proof of domicile in this state may be shown as
24 prescribed by rule by the commission.

25 8. "Falconry" means the sport of hunting or taking quarry with a
26 trained raptor.

27 9. "Fishing" means to lure, attract or pursue aquatic wildlife in
28 such a manner that the wildlife may be captured or killed.

- 1 10. "Fur dealer" means any person engaged in the business of buying
2 for resale the raw pelts or furs of wild mammals.
- 3 11. "Guide" means a person who meets any of the following:
- 4 (a) Advertises for guiding services.
- 5 (b) Holds himself out to the public for hire as a guide.
- 6 (c) Is employed by a commercial enterprise as a guide.
- 7 (d) Accepts compensation in any form commensurate with the market
8 value in this state for guiding services in exchange for aiding,
9 assisting, directing, leading or instructing a person in the field to
10 locate and take wildlife.
- 11 (e) Is not a landowner or lessee who, without full fair market
12 compensation, allows access to the landowner's or lessee's property and
13 directs and advises a person in taking wildlife.
- 14 12. "License classification" means a type of license, permit, tag
15 or stamp authorized under this title and prescribed by the commission by
16 rule to take, handle or possess wildlife.
- 17 13. "License year" means the twelve-month period between January 1
18 and December 31, inclusive, or a different twelve-month period as
19 prescribed by the commission by rule.
- 20 14. "Nonresident", for the purposes of applying for a license,
21 permit, tag or stamp, means a citizen of the United States or an alien who
22 is not a resident.
- 23 15. "Open season" means the time during which wildlife may be
24 lawfully taken.
- 25 16. "Possession limit" means the maximum limit, in number or amount
26 of wildlife, that any one person may possess at one time.
- 27 17. "Resident", for the purposes of applying for a license, permit,
28 tag or stamp, means a person who is:
- 29 (a) A member of the armed forces of the United States on active
30 duty and who is stationed in:
- 31 (i) This state for a period of thirty days immediately preceding
32 the date of applying for a license, permit, tag or stamp.
- 33 (ii) Another state or country but who lists this state as the
34 person's home of record at the time of applying for a license, permit, tag
35 or stamp.
- 36 (b) Domiciled in this state for six months immediately preceding
37 the date of applying for a license, permit, tag or stamp and who does not
38 claim residency privileges for any purpose in any other state or
39 jurisdiction.
- 40 (c) A youth who resides with and is under the guardianship of a
41 person who is a resident.
- 42 18. "Road" means any maintained right-of-way for public conveyance.
- 43 19. "Statewide" means all lands except those areas lying within the
44 boundaries of state and federal refuges, parks and monuments, unless
45 specifically provided differently by commission order.
- 46 20. "Take" means pursuing, shooting, hunting, fishing, trapping,
47 killing, capturing, snaring or netting wildlife or placing or using any

1 net or other device or trap in a manner that may result in capturing or
2 killing wildlife.

3 21. "Taxidermist" means any person who engages for hire in
4 mounting, refurbishing, maintaining, restoring or preserving any display
5 specimen.

6 22. "Traps" or "trapping" means taking wildlife in any manner
7 except with a gun or other implement in hand.

8 23. "Wild" means, in reference to mammals and birds, those species
9 that are normally found in a state of nature.

10 24. "Wildlife" means all wild mammals, wild birds and the nests or
11 eggs thereof, reptiles, amphibians, mollusks, crustaceans and fish,
12 including their eggs or spawn.

13 25. "Youth" means a person who is under eighteen years of age.

14 26. "Zoo" means a commercial facility open to the public where the
15 principal business is holding wildlife in captivity for exhibition
16 purposes.

17 B. The following definitions of wildlife shall apply:

18 1. "Aquatic wildlife" means fish, amphibians, mollusks, crustaceans
19 and soft-shelled turtles.

20 2. "Big game" means wild turkey, deer, elk, pronghorn (antelope),
21 bighorn sheep, bison (buffalo), peccary (javelina), bear and mountain
22 lion.

23 3. "Fur-bearing animals" means muskrats, raccoons, otters, weasels,
24 bobcats, beavers, badgers and ringtail cats.

25 4. "Game fish" means trout of all species, bass of all species,
26 catfish of all species, sunfish of all species, northern pike, walleye and
27 yellow perch.

28 5. "Game mammals" means deer, elk, bear, pronghorn (antelope),
29 bighorn sheep, bison (buffalo), peccary (javelina), mountain lion, tree
30 squirrel and cottontail rabbit.

31 6. "Migratory game birds" means wild waterfowl, including ducks,
32 geese and swans, sandhill cranes, all coots, all gallinules, common snipe,
33 wild doves and bandtail pigeons.

34 7. "Nongame animals" means all wildlife except game mammals, game
35 birds, fur-bearing animals, predatory animals and aquatic wildlife.

36 8. "Nongame birds" means all birds except upland game birds and
37 migratory game birds.

38 9. "Nongame fish" means all the species of fish except game fish.

39 10. "Predatory animals" means foxes, skunks, coyotes, BEARS,
40 COUGARS, MOUNTAIN LIONS~~[, WOLVES]~~ and bobcats.

41 11. "Raptors" means birds that are members of the order of
42 falconiformes or strigiformes and includes falcons, hawks, owls, eagles
43 and other birds that the commission may classify as raptors.

44 12. "Small game" means cottontail rabbits, tree squirrels, upland
45 game birds and migratory game birds.

46 13. "Trout" means all species of the family salmonidae, including
47 grayling.

House Amendments to H.B. 2158

1 14. "Upland game birds" means quail, partridge, grouse and
2 pheasants.

3 Enroll and engross to conform

4 Amend title to conform

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